

Terms & Conditions - Insurance Policy (INDIA) |

Currency: INR ■

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TERMS AND CONDITIONS - INSURANCE POLICY (INDIA)
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| Insurance Act, 1938 Last Updated: January 2024 Effective for policies issued on or after this date ---

1. DEFINITIONS

"Policyholder" or "Insured": The individual or entity named in the Declarations page as the policy owner (per Insurance Act, 1938). "Policy": This insurance contract, including the declarations, coverage sections, conditions, endorsements, and any riders. "Premium": The amount paid by the policyholder in exchange for insurance coverage (in Indian Rupees). "Deductible": The amount the policyholder must pay toward covered losses before insurance coverage applies. "Coverage Limit" or "Limit of Liability": The maximum amount the insurance company will pay for a covered loss. "Loss": An event that causes damage, injury, or expense covered under this policy. "Claim": A formal request for payment for a covered loss. "Effective Date": The date coverage begins (shown in Declarations page). "Expiration Date": The date coverage ends (shown in Declarations page). "Policy Period": The time interval between effective and expiration dates (typically 12 months). "Named Insured": The policyholder whose name appears on the Declarations page. "IRDA": Insurance Regulatory and Development Authority (regulator of all insurance in India). "Occurrence": An accident or continuous condition resulting in bodily injury or property damage. "Exclusion": Coverage that is specifically not provided under this policy. "Endorsement": A written amendment to the policy terms. "Rider": An optional coverage add-on to the policy. "Insurable Interest": The policyholder's direct legal or financial interest in the subject of insurance. ---

2. APPLICATION & REPRESENTATIONS

2.1 ACCURACY OF APPLICATION

The policyholder warrants that all information provided in the application is true, accurate, and complete. The insurance company relies on these representations to issue coverage and calculate premiums as per Insurance Act, Section 45.

2.2 MATERIAL MISREPRESENTATION

If the policyholder makes material misrepresentations or omissions in the application: - The insurance company may cancel coverage retroactive to the inception date - Premiums paid may be forfeited or returned at company discretion - Claims may be denied - The policyholder may be subject to fraud investigation - Limitation: No misrepresentation defense after 2 years of policy issuance (per Insurance Act, Section 45) Innocent misstatement or omission: - Coverage cannot be cancelled after 2 years of policy issuance - Cannot be used as defense in claim denial after 2-year period - Exception: Misstatement of age continues to apply

2.3 POLICY ISSUE (IRDA Compliant)

Coverage is not effective until: - The policy is issued by the insurance company - The premium is received by the insurance company - No material misrepresentation exists - All underwriting requirements are satisfied - The policyholder receives a copy of the policy (physical or electronic) - Grace period starts on the date policy is issued

2.4 CHANGES TO APPLICATION

The policyholder must notify the insurance company of any changes to information provided in the application: - Change of address or residential status - Occupational change or job loss - Addition of household members or dependents - Increase in coverage needs or property value - Changes in risk factors or exposures - Failure to report material changes may void coverage ---

3. COVERAGE & EXCLUSIONS

3.1 COVERAGE EFFECTIVE DATE (IRDA Requirement)

Coverage begins on the effective date shown in the Declarations page unless otherwise specified: - Coverage applies only to losses occurring during the policy period - Claims must be reported within the specified timeframe (typically 30-90 days) - Losses occurring before effective date are NOT covered - Losses after expiration date are NOT covered - Extension of coverage requires written endorsement

3.2 PRINCIPAL EXCLUSIONS (Applies to All Coverage)

Coverage does NOT apply to losses caused by or resulting from: War and Military Action: - War, invasion, hostilities, warlike operation - Civil war, revolution, insurrection, rebellion - Military coup or armed rebellion Terrorism: - Terrorist act, bomb, explosion - Biological or chemical agent attack - Exception: Terrorism coverage available through special endorsement Nuclear Hazard: - Nuclear reaction, radiation, or radioactive contamination - Applies even if caused by accident or negligence Intentional Acts: - Loss intentionally caused by the policyholder - Benefit obtained by criminal act of policyholder Criminal Acts: - Loss directly resulting from crime by named insured - Exception: Spouse or children as victims may have coverage Regulatory/Government Action: - Confiscation or destruction by order of government authority - Exception:

Destruction by civil authority to protect other property

3.3 SPECIFIC COVERAGE EXCLUSIONS

Auto Insurance exclusions: - Wear and tear, mechanical or electrical breakdown - Depreciation and loss of value - Damage from racing or speed contests - Commercial use (unless endorsed) - Damage caused by operator under influence (DUI) Home Insurance exclusions: - Maintenance and wear and tear - Settling, cracking, or shrinking of foundation - Damage from system failure or power outage - Loss from defective design or construction defect - Mold, fungi, or rot (covered under separate endorsement) - Earth movement (earthquake requires separate coverage) - Flood damage (requires separate flood insurance) Health Insurance exclusions: - Cosmetic surgery (except reconstructive surgery) - Fertility treatment and IVF - Experimental procedures not FDA/DCGI approved - Self-inflicted injuries or suicide - Injuries from illegal activity - Treatment by non-network provider (except emergency)

3.4 INSURABLE INTEREST (Requirement)

The policyholder must have insurable interest in the subject matter of insurance at the time of loss: - Property insurance: Must own or have legal interest in property - Liability insurance: Must be legally responsible for potential damages - Life insurance: Must reasonably expect to benefit from insured's continued life - Policy is void if insurable interest does not exist at time of loss ---

4. POLICY CONDITIONS

4.1 NOTICE AND REPORTING (IRDA Requirement)

The policyholder must: - Immediately notify the insurance company of any covered loss - Report losses within timeframe specified (typically 30-90 days) - Provide notice to police if loss involves theft/vandalism/crime - Provide detailed information about the loss - Document the loss with photos, receipts, or other evidence - Failure to report timely may result in claim denial (per Insurance Act Section 61)

4.2 COOPERATION AND INVESTIGATION

The policyholder must: - Cooperate fully with the insurance company's investigation - Submit to examination by company physician (if requested) - Allow property inspection by adjuster - Provide all documentation requested - Participate in investigation and interviews - Answer questions truthfully and completely - Not interfere with evidence or property - Failure to cooperate may result in claim denial

4.3 COVERAGE CANCELLATION

Cancellation by Policyholder: - Written notice required (email/phone acceptable initially, written required for finalization) - Provide 10 days notice (or as per policy terms) - Coverage terminates on specified date or immediately if no date given - Unused premium refunded on pro-rata basis (per IRDA guideline) - Pro-rata refund = $(\text{Days remaining} / \text{Days in billing period}) \times \text{Premium}$ Cancellation by Insurer: - Non-payment: Cancelled after 30-day grace period - Material misrepresentation: Cancelled with written notice, may be retroactive - Policy conditions violated: Cancelled with written notice (10-60 days) - Fraud: Cancelled immediately - Regulatory requirement: Cancelled with appropriate notice - All cancellations must provide written notice with specific reason (per IRDA mandate) Cancellation notice must include: - Specific reason for cancellation with reference to policy condition - Date cancellation effective - Policyholder rights (appeal, complaint to IRDA) - Instructions for reinstatement (if applicable) - Contact information for customer service

4.4 NON-RENEWAL (IRDA Requirement)

Insurance company may choose not to renew at expiration date: - Must provide written notice 30-60 days before expiration (varies by insurance type) - Reason for non-renewal must be stated clearly - Policyholder has right to request written explanation - Refusal to renew does not imply policy violation

4.5 REINSTATEMENT (IRDA Compliant)

A lapsed policy may be reinstated if: - Application for reinstatement made within 30 days of lapse - All outstanding premiums paid including late fees - Underwriting requirements satisfied (fresh application may be required) - No losses occurred during lapse period without coverage - Company retains discretion to refuse reinstatement - After 30 days, new application required (not reinstatement)

4.6 POLICY CHANGES AND ENDORSEMENTS

The policyholder may modify the policy at any time: - Change coverage limits or deductibles (may require underwriting) - Add or remove coverage (may require medical underwriting for health) - Change beneficiary (life insurance only) - Changes effective on specified date or next billing date - Endorsement must be issued in writing to document changes - Premium adjustments apply prospectively (from effective date of change) ---

5. PREMIUM PAYMENT

5.1 PREMIUM AMOUNT AND SCHEDULE

- Premium amount stated in Declarations page (in Indian Rupees) - Annual, semi-annual, quarterly, or monthly payment options available - Initial premium must be received before coverage begins - Renewal premium due by policy anniversary (typically 30-60 days before expiration) - Premium subject to change at renewal based on:

- Claims history (last 3-5 years)
- Risk assessment updates
- Rate changes approved by IRDA
- Coverage modifications requested
- Age increase (for life/health insurance)

5.2 METHOD OF PAYMENT

Accepted payment methods: - Credit/debit cards (Visa, MasterCard, American Express, RuPay) - Net banking and NEFT/RTGS transfers - Digital wallets (Google Pay, PhonePe, Paytm, BHIM) - Cheques (mailed to address specified) - Electronic funds withdrawal (ACH/auto-debit if enrolled)

5.3 GRACE PERIOD (IRDA Mandated)

- 30-day grace period for payment after due date - Coverage remains in effect during grace period - If payment received during grace period, policy continues uninterrupted - If payment not received by end of grace period, policy automatically lapses - No claims covered after lapse date

5.4 LATE PAYMENT FEES

- Late fees may apply if payment received after due date (within grace period) - Typical late fee: ■500-2,000 or percentage of premium (as per policy terms) - Late fees do not reinstate coverage if policy lapses beyond grace period

5.5 AUTOMATIC PAYMENT ENROLLMENT

Policyholder may authorize automatic payment: - Automatically debits specified payment method on due date - Typically processed 5-10 days before due date - Policyholder receives notification before debit (SMS/email) - Can be cancelled with written notice (minimum 15 days) - Premium amount subject to change may require new authorization

5.6 RETURNED PAYMENT

If payment check/electronic transfer is returned for insufficient funds: - A returned payment fee applies (typically ■500-1,000) - Another payment method required immediately - Policy may lapse if payment not provided within grace period

5.7 REFUNDS

Premium refund eligibility: - Upon cancellation: Unused premium refunded on pro-rata basis - Upon denial: Premium refunded if coverage retroactively denied - No refunds for voluntary cancellation after claim filed - Refund calculation: $(\text{Days remaining} / \text{Days in billing period}) \times \text{Premium}$ - Refund issued within 30 days (may be applied to other policies) - TDS deducted if refund >■20,000 (per income tax provisions) ---

6. CLAIMS PROCEDURES (IRDA Compliant)

6.1 NOTICE OF LOSS

Policyholder must: - Notify insurance company without unreasonable delay (typically within 30 days) - Provide notice to police if theft/crime/accident involved (file FIR) - Provide notice in writing (email, phone, SMS acceptable for initial notice) - Claim number assigned upon notification (provide for all future correspondence) - Contact: 1800-INSURANCE toll-free or claims@insurancecompany.co.in

6.2 PROOF OF LOSS (IRDA Requirement)

Policyholder must: - Submit complete proof of loss documentation - Typically within 90 days of loss (can be extended) - Affidavit required for claims > ₹1,00,000 (per IRDA guideline) - Documentation must include: • Description of loss (what, when, where, how) • Date and exact time of loss • Cause of loss (accident, weather, theft, etc.) • Amount of claim with supporting receipts • Proof of value (receipts, bills, certificates, appraisals) • Supporting documents (medical reports, police FIR, accident photos)

6.3 CLAIM INVESTIGATION (IRDA Standard Timeline)

The insurance company: - Assigns claims adjuster within 1-2 business days - Provides adjuster name, contact, and claim reference number - May conduct investigation at policyholder's residence/business - May request additional documentation within 30 days - May obtain medical records (health/life claims) with consent - May verify coverage and policy conditions - Policyholder must cooperate fully; non-cooperation may result in denial

6.4 CLAIM DECISION TIMELINE (IRDA Mandate)

- Acknowledgment of claim: Within 24 hours of receipt - Decision on claim: Within 30 days of receiving complete proof of loss - If additional information needed: Extends timeline (adjuster communicates) - Denied claims: Written explanation provided within 30 days - Appeal process: 30 days from denial to file appeal

6.5 CLAIM PAYMENT (IRDA Requirement)

Upon approved claim: - Payment issued within 30 days of approval (or within 90 days if settlement interim) - Check mailed to policyholder address on file or electronic transfer - Payee typically includes lien holder (for auto/home loans) - Payment in Indian Rupees only - Interest accrues at 12% p.a. on overdue claim settlements

6.6 DEDUCTIBLE APPLICATION

- Deductible applies per occurrence (unless stated as aggregate) - Company subtracts deductible from claim payment - Example: ₹50,000 loss, ₹5,000 deductible = ₹45,000 payment - Some losses may have no deductible (specified in policy)

6.7 CLAIM DISPUTES & APPEALS (IRDA Compliant)

If policyholder disagrees with claim decision: - File written appeal within 30 days of denial - Provide additional documentation/evidence - Send to: grievance@insurancecompany.co.in - Company reviews appeal within 10-15 days - If unresolved, escalate to IRDA Ombudsman (free, no cost to policyholder) - IRDA Ombudsman decision binding within ₹30 Lakhs ---

7. LIMITS OF LIABILITY

7.1 COVERAGE LIMITS

- Insurance company's liability limited to coverage limits shown in Declarations - Single limit vs. split limits explained in policy - Aggregate limit: Maximum total for all claims in policy period - Company not obligated to provide coverage above limit

7.2 SUB-LIMITS

Certain coverages have sub-limits (lower limits than main coverage): - Jewelry typically sub-limited to ₹2,00,000-₹5,00,000 - Cash limited to ₹50,000-₹1,00,000 - Electronic equipment often limited to ₹2,50,000-₹5,00,000 - These sub-limits apply in addition to deductible

7.3 POLICY LIMIT EXHAUSTION

If claim exceeds policy limit: - Insurance company pays up to limit only - Policyholder responsible for excess amount - No obligation for company to provide coverage above limit Example: - Coverage limit: ₹20 Lakhs - Claim amount: ₹30 Lakhs - Company pays: ₹20 Lakhs - Policyholder responsible for: ₹10 Lakhs ---

8. SUBROGATION AND SALVAGE

8.1 SUBROGATION RIGHTS (Insurance Act Section 79)

The insurance company: - Has right to pursue recovery from responsible third parties - Can take legal action to recover amounts paid on claim - Subrogation limited to amount actually paid - Does not prevent claimant from pursuing separate action - Waiver of subrogation available through written endorsement

8.2 SALVAGE

- Insurance company owns salvage from total loss (vehicle, property) - Company may retain salvage value - Salvage value deducted from settlement amount - Policyholder cannot dispose of property without approval
Example: - Vehicle total loss value: ■10,00,000 - Salvage value: ■3,00,000 - Company pays: ■7,00,000 ---

9. COORDINATION OF COVERAGE

9.1 PRIMARY AND EXCESS COVERAGE

When multiple policies cover same loss: - Primary policy pays first - Secondary/excess policies coordinate - Policyholder cannot recover more than actual loss amount (no double recovery) - Company can request proof of other insurance

9.2 INSURANCE WITH OTHER PARTIES

If coverage also provided by others (employer, contractor, manufacturer): - This policy is excess over other coverage (for most coverages) - Insurance company pays only for gaps in other coverage - Exception: Liability coverage is primary ---

10. MODIFICATION OF COVERAGE

10.1 CANCELLATION OF RIDERS

Rider can be cancelled: - With 30 days written notice by either party - Effective date specified in cancellation notice - Unearned premium on rider refunded on pro-rata basis - Example: ■500/month rider, cancelled mid-month, refund is pro-rated

10.2 COVERAGE CHANGES AND ADJUSTMENTS

Policyholder may: - Increase/decrease coverage limits (may require underwriting/medical exam) - Add/remove optional coverages or riders - Change deductibles (may affect premium) - Changes effective on specified date or next billing date - Premium adjusted retroactively if mid-term change (refund or charge) ---

11. GENERAL CONDITIONS (IRDA Compliant)

11.1 ENTIRE AGREEMENT

This policy, including declarations, endorsements, riders, and all amendments, constitutes the entire agreement between parties. No agent, broker, or representative has authority to modify terms or waive conditions unless authorized in writing by authorized signatory.

11.2 AMENDMENTS AND MODIFICATIONS

Only authorized company representatives can modify policy terms through: - Written endorsement signed by authorized officer - Formal amendment document issued by company - Email confirmation from authorized claims officer (if pre-authorized) - Verbal modifications are NOT binding and not enforceable

11.3 ASSIGNMENT OF POLICY

This policy cannot be assigned to another party without: - Written consent of insurance company - Formal assignment documentation signed by both parties - Exception: Assignment to mortgagee for property securing loan

11.4 ASSIGNMENT OF RIGHTS

Policyholder may not assign rights to claims under this policy: - Claims cannot be assigned to third parties without consent - Assignment without consent voids coverage for assigned portion - Exception: Assignment to creditors with written company approval

11.5 LEGAL ACTION

Legal proceedings against insurance company: - Must be brought within time limit specified by state law (typically 3 years) - Typically 3 years from loss date per Limitation Act - Venue: In state where policyholder resides or loss occurred - Burden of proof: Policyholder must prove claim is covered

11.6 BANKRUPTCY

If policyholder declares bankruptcy: - Insurance company may suspend claim payments pending legal determination - Claims may be filed through bankruptcy estate - Coverage remains in effect if premiums are current - Subrogation rights not affected by bankruptcy

11.7 NOTICE TO POLICYHOLDER (IRDA Requirement)

All notices from insurance company effective when: - Mailed to last known address (via registered post) - Delivered personally - Sent by email (if email address provided) - Sent via SMS or WhatsApp (if consent given) - Posted on company website (if policyholder authorized)

11.8 CANCELLATION BY INSURED

Cancellation takes effect: - On date specified in cancellation notice - Retroactive cancellation available (cancels to effective date) - Premium refund based on pro-rata calculation - Refund issued within 30 days of cancellation ---

12. STATUTORY CONDITIONS (Insurance Act, 1938)

12.1 DUTIES AFTER LOSS

Policyholder must: - Protect property from further damage (mitigate loss) - Prevent claim increase or additional losses - Cooperate with investigation and insurer - Provide timely notice (per Section 40) - Submit proof of loss (per Section 41)

12.2 INSURABLE INTEREST

Must exist at time of loss (not necessarily at policy inception): - Property: Must own interest or have legal claim on property - Liability: Must be responsible for insured liability - Life: Must reasonably expect to benefit from insured's life

12.3 FRAUD PREVENTION & INVESTIGATION

Insurance company may: - Investigate any suspected fraudulent claims - Conduct polygraph examination (if fraud suspected) - Prosecute fraudulent claims in court - Cancel coverage for fraud retroactive to inception - Report fraud to authorities and IRDA - Criminal prosecution under IPC Section 420 (cheating) ---

13. POLICY RENEWAL

13.1 RENEWAL NOTICE (IRDA Requirement)

- Renewal notice mailed 30 days before expiration (per IRDA directive) - Notice includes renewal date, new premium, and policy changes - Renewal notice also serves as offer to renew (can be declined) - If renewal premium not received by expiration, policy lapses

13.2 RENEWAL COVERAGE

If policy renewed by policyholder: - Coverage continues without lapse - Terms may change based on renewal underwriting - Premium may increase or decrease (with explanation) - Coverage may be modified upon request

13.3 NON-RENEWAL (IRDA Requirement)

Insurance company may choose not to renew: - Written notice required 30-60 days before expiration (varies by product) - Reason for non-renewal stated clearly - Policyholder may request written explanation - Coverage terminates at expiration date

13.4 CONTINUOUS COVERAGE

To maintain continuous coverage: - Renew before expiration date - If missed, 30-day grace period applies - After grace period, coverage lapses and reinstatement required - New coverage typically includes new underwriting ---

14. COMPLIANCE AND DISPUTE RESOLUTION (IRDA)

14.1 STATE LAWS

- This policy subject to laws of [State of Issue] and Insurance Act, 1938 - Insurer licensed to write insurance by IRDA - All requirements of IRDA regulations and state laws apply - Jurisdiction: Courts in state where policyholder resides or loss occurred

14.2 COMPLAINT AND APPEAL PROCESS

If dissatisfied with claim decision:

1. Contact Claims Department for explanation (within 7 days of receipt)

2. File formal complaint within 30 days

3. Escalate to Compliance Officer if unresolved

4. Request IRDA Ombudsman review (if still unresolved)

5. Request independent arbitration (if both parties agree)

14.3 IRDA OMBUDSMAN CONTACT

- Website: www.irda.gov.in - Email: [ombudsman email] - File complaint: www.irda.gov.in/ombudsman - Phone: [IRDA Ombudsman helpline] - Time limit: Complaint within 1 year of denial or 3 years from loss

14.4 MEDIATION & ARBITRATION

- Either party may request mediation for disputes - Neutral third party assists resolution - Costs may be split 50/50 or per mediation agreement - Faster than litigation (typically 2-3 months) ---

15. DEFINITIONS OF KEY INSURANCE TERMS

"Occurrence": Accident or continuous condition (for liability coverage) "Accident": Unexpected, unintended event causing loss "Named Insured": Primary policyholder whose name appears on declarations "Insurable Interest": Legal or equitable interest in subject of insurance "Proximate Cause": Primary or nearest cause of loss "Depreciation": Reduction in value based on age and condition "Replacement Cost": Full cost to replace item new "Actual Cash Value (ACV)": Replacement cost minus depreciation "Endorsement": Formal policy amendment or modification "Rider": Optional coverage addition to base policy "Deductible": Amount policyholder pays before insurance applies "Coverage Limit": Maximum company pays for covered loss "Exclusion": Coverage not provided under policy "Condition": Requirement policyholder must meet for coverage "Representation": Statement by policyholder used in underwriting "Fraud": Intentional deception to obtain insurance benefit "Subrogation": Company's right to recover from third party at fault --- Effective Date: As shown in Policy Declarations Policy Year: Twelve months from effective date or annual anniversary Currency: All amounts in Indian Rupees (₹) All policyholders are required to read and understand these Terms and Conditions. For questions or clarification, contact customer service: Phone: 1800-INSURANCE (1800-467-8627) Email: support@insurancecompany.co.in Website: www.insurancecompany.co.in IRDA Registration Number: IA/[XXX]/2024 IRDA Contact: www.irda.gov.in | Helpline: 1800-425-4050 This document is effective January 1, 2024, for all policies issued or renewed on or after this date in India.